

THE OVERLAY — THE ADMITTED FACTS AND THE MEDICAL

WC/2024/227 – Cory Lea Shepherd v Workers' Compensation Regulator

Black is the text of a fact **admitted by the Respondent on 8 September 2026** in answer to the notice to admit facts served on 28 August 2026, word for word, with its number in that notice in brackets. Admissions are for this proceeding only, under rule 49 of the *Industrial Relations (Tribunals) Rules 2011*. **Blue** is the medical, word for word from the Appellant's schedule of medical documents served 9 September 2026, with its tab in brackets; it is relied upon for the existence and wording of the document, and for clinical opinion only through the oral evidence of its author. **Dates in the left column, and words in red, are navigation only. They are not evidence.** No word of the Appellant's own account appears in this document.

THE POSITION

That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period". ^[13] That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week". ^[2] That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes". ^[8] That role description states, as a key responsibility: "Maintain call queues to minimum at all times". ^[5] That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital". ^[3]

17 June 2020	The Appellant signed an agreement allowing an 8-hour break between shifts on 17 June 2020. ^[17] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the 8-hour agreement of 17 June 2020 was reviewed, re-executed or re-confirmed at any time between 17 June 2020 and 18 March 2024. ^[21] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 1 May 2024, that the 8-hour agreement of 17 June 2020 could be terminated by him. ^[22]
18 July 2023	On 18 July 2023 at 12:56 pm Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, sent an email to the Appellant and the Switchboard team, subject "Hello & Update", which states: "My current role is a project role for the Switchboard team. It is a temporary position that predominantly focuses on fixing up the database that switchboard utilises." ^[39] That email states: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database." ^[40] That email states: "I have also removed the Contact & Number Changes book out of the room, as I would prefer, for now, to be sent all changes to my email." ^[45] That email states that if an entry was needed on a day Ms Stibbard was not present and was urgent, it was to be sent to Ms Taylor. ^[43] That email states that a request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back". ^[44] As to restoration of access: The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that access to the database used by the Switchboard was restored to the Appellant at any time before 18 June 2024. ^[55]
7–8 August 2023	On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the demands and the additional hours of the department both Patricia Conaghan and I would like to formally adhoc an additional 2 shifts per fortnight." ^[26] On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "With regards to an additional shift to replace the shift you did not work Monday due to a rostering error I believe Chloe offered you the shift tomorrow Wednesday 9th 0700-1500, thus can I ask if you are interested in picking up that shift? I believe you will then have 8 shifts this fortnight if you were to pick up that shift, thus can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?" ^[28]

23 August 2023	On 23 August 2023 at 2:18 pm Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, with the subject "What's Chloe's Hours?!", which states: "I am fulltime and work flex hours - You may have noticed recently I am starting at different times in the morning and finish at different times in the afternoon." [71] That email states: "My hours would range from starting between 6-9am and finishing 2-5pm." [72] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor stated fixed office hours to the Switchboard staff at any time between 23 August 2023 and 17 May 2024. [73]
31 August 2023	On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster". [30] That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster and advocacy to become a union representative for the switchboard department." [31] That application of 31 August 2023 records, in the same sentence, the Appellant's advocacy to become a union representative for the switchboard department and his willingness to take on additional night shifts. [32]
4 September 2023	On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability." [33] That email states: "I have no issues with shift work." [34]
27 September 2023	On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent Fulltime hours, I am very pleased to advise you that this has been approved." [37] That email states: "happy to commence Full-time hours from the 16th October 2023". [38]
16 November 2023	General-practice records, Our Medical Ashmore: the entry of 16 November 2023 (Dr Nanayakkara) recording poor sleep with shift work, that the Appellant could not do shifts without a good sleep, no psychological illness such as depression or psychosis, and mood good, with melatonin and temazepam prescribed. [M1]
15 April 2024 12:39 pm	On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard". [49] That email states: "This new process is effective from today." [51] That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised." [50] Ms Taylor signed that email as "A/Switchboard Manager". [53] As to consultation before it issued: The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024. [273]
16–26 April 2024	On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts. [211] That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer". [212] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor got in touch with the Appellant about alternative shifts following the meeting of 16 April 2024. [213]
1 May 2024 1:18 pm	On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Re: Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act." [214] That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback". [215] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor reviewed the toolkit referred to in that email, or provided any feedback on it, at any time before 18 June 2024. [216]

3 May 2024	The first message in that thread is dated 3 May 2024, is from PayrollMetroSouth, is addressed to Ms C Taylor, and is copied to the Appellant. ^[183] That message states: "Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is topping up the missing wages from his RDO balance." ^[185] That message states: "This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775." ^[186] That message states: "The same has happened for the next fortnight 19.02.24 due to 28.02.24 shift AVAC PRN 15605601 has this shift as 7hrs topping up 0.95 for missing hour." ^[187] That message states: "Fortnight 18.03.24 is the opposite and has too many ordinary shifts for the fortnight resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime." ^[188] That message states: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended." ^[190]
3 May 2024 3:06 pm	On 3 May 2024 at 3:06 pm Vivian Kwok, MASPER Registrar, sent an email to Ms Taylor, copied to Dr Pan Jane Wong, with the subject "Switchboard issues 2nd and 3rd May 2024", which states: "I've been requested to email you with the list of switchboard issues from yesterday and today". ^[56] That email lists five occasions on 2 and 3 May 2024, being 2 May 2024 at 14:47, and 3 May 2024 at 10:00 am, 10:22 am, 11:43 am and 14:46. ^[57] That email records of the occasion at 14:46 on 3 May 2024: "MET call team called x5290 asking where MET call was located 'VHUB' - switchboard could not tell them where VHUB was. Had to be redirected by MASPER". ^[58]
8 May 2024 9:08 am	On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response." ^[217]
8 May 2024 5:28 pm	On 8 May 2024 at 5:28 pm Vivian Kwok sent a further email to Ms Taylor, copied to Dr Wong, with the subject "Re: Switchboard issues 5 May, 7 May, and 8 May", which states: "Here are the switchboard issues 5th May to 8th of May". ^[59] That further email lists four occasions, being 5 May 2024 at 14:45, 7 May 2024 at 0745, and 8 May 2024 at 8:53 am and 9:59 am. ^[60] That further email records of the occasions on 8 May 2024 that a call was "incorrectly put through to MASPER" on each occasion. ^[61] The email of Vivian Kwok of 8 May 2024 was sent on the fifth calendar day after her email of 3 May 2024. ^[62]
9 May 2024 9:20 am	On 9 May 2024 at 9:20 am Ms Taylor sent an email to Vivian Kwok, MASPER Registrar, and Dr Pan Jane Wong, subject "RE: Switchboard issues 5 May, 7 May, and 8 May", which states: "@Pan Jane Wong Can I please confirm your business hours so we can have this for our reference, it is not provided on the rosters. I have noticed your dect phone number #5997 is currently switched off." ^[65] The interval between the email of Vivian Kwok of 3 May 2024 at 3:06 pm and the email of Ms Taylor of 9 May 2024 at 9:20 am is five days, eighteen hours and fourteen minutes. ^[64]
9 May 2024 10:15 am	On 9 May 2024 at 10:15 am Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, subject "MASPER process", which states: "To try and eliminate this can I please ask that all calls that switch transfer to the MASPER phone #5223 are being introduced." ^[66] Ms Taylor's email to Logan Switch of 9 May 2024 at 10:15 am states: "I have included below email trail for your reference. There have been many ongoing issues raised by the MASPER and the medical department about calls being transferred to the wrong medical teams." ^[67]
10 May 2024 2:08 pm	On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue." ^[218] That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run thought this and we say at best there would be a rating of 11 which is moderate". ^[219] That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters". ^[220] That email of Ms Reese to Mr Mackenzie Pritchard of 10 May 2024 states: "Cory's roster will not be considered, however Cory is not yet aware of this as we cannot advise what is the roster we are planning on going with before we send out the implementation plan for this business case for change". ^[221]

13 May 2024 8:21 am	That message of 13 May 2024 states: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will also be affecting your RDO balances as well as your pay." [193]
15 May 2024 11:47 am	On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area." [89] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 15 May 2024 at 11:47 am at any time before 20 May 2024. [90]
15 May 2024 1:15 pm	On 15 May 2024 at 1:15 pm the Appellant sent an email to Ms Taylor and Logan Switch, copied to Switchboard staff, Ms Reese and LBH_HR, with the subject "Office Hours and Departmental Directives", which states: "could you please share your office hours so the entire department can be aware of your regular schedule? There has been some noted inconsistency in your arrival and departure times". [74] That email of the Appellant states: "please ensure that any directives and changes within the department is made in consultation with the team to ensure that any concerns can be appropriately addressed." [75]
15 May 2024 6:23 pm	On 15 May 2024 at 6:23 pm Ms Reese replied to the Appellant, copied to Ms Taylor and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct". [76] That reply of Ms Reese asked the Appellant to retract his email. [77]
15 May 2024 7:09 pm	On 15 May 2024 at 7:09 pm the Appellant replied to Ms Reese stating: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer in response to directives to contact Chloe during office hours." [78]
16 May 2024	The referral letter of 16 May 2024 (Dr Zhao), renewing a referral to a psychiatrist, Dr Amini, for "ongoing care and management", which lists among the past-medical-history items "26/10/2022 ADHD" and "26/10/2022 Anxiety", and lists the medications then current, none of which is an antidepressant or an anxiolytic. [M1]
17 May 2024 9:30 am	On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff, with the subject "Switchboard Manager - On call and Hours.", which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile." [81] That email of 17 May 2024 at 9:30 am states: "I will not be in the office until around 11am on Monday 20.05.2024". [83] That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week." [84] The office hours stated by Ms Taylor in her email of 17 May 2024 at 9:30 am concluded at 2:30 pm. [88]
20 May 2024 11:03 am	On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues." [91] The email of Ms Marriott of 20 May 2024 at 11:03 am was sent on the fifth calendar day after her email of 15 May 2024 at 11:47 am. [92] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 20 May 2024 at 11:03 am before 2:05 pm on that day. [93]

20 May 2024 2:05 pm	On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document: Outpatients Department - Clinic contact Details. on the 22nd of February 2024. I recommend a modification and review of the document." [94] That email of the Appellant was sent within the office hours Ms Taylor had stated to all Switchboard staff on 17 May 2024. [96] The Appellant's email of 20 May 2024 at 2:05 pm was sent three hours and two minutes after the email of Ms Marriott of that day at 11:03 am. [97] The Appellant's email of 20 May 2024 at 2:05 pm was sent five days, two hours and eighteen minutes after the first email of Ms Marriott of 15 May 2024 at 11:47 am. [98] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was rostered to work after 2:05 pm on 20 May 2024. [99]
20 May 2024 4:07 pm	On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great." [222] That email of Ms Reese to LBH_HR attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline. [223]
20 May 2024 4:30 pm	On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical." [100] That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing." [101] Ms Taylor's reply of 20 May 2024 at 4:30 pm was sent two hours and twenty-five minutes after the Appellant's email of that day at 2:05 pm. [102] That reply of Ms Taylor was sent two hours after the conclusion of the office hours she had stated to all Switchboard staff on 17 May 2024. [103] Ms Taylor's reply of 20 May 2024 at 4:30 pm states that the matter had been discussed "this morning", being the morning of 20 May 2024. [104] As to that discussion, and as to any answer to the Respiratory Service: The Respondent's amended List of Documents dated 14 August 2026 does not list any document created on 20 May 2024 recording the discussion referred to in that reply. [105] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Ms Taylor to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024. [106] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Mr Parry to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024. [107]
21 May 2024 12:33 pm	That message of 21 May 2024 states: "Just letting you know that I am still I am waiting payroll confirmation about a few of these payroll issues and as soon as I do get that confirmation, I will submit an AVAC for next pay run. I will let you know PRN once it has been submitted." [195]
21 May 2024 2:53 pm	On 21 May 2024 at 2:53 pm Ms Reese replied to the Appellant stating: "With regards to your concerns about having more clarity as to what are Chole's business hours I will follow up on the issues raised." [79] That reply of Ms Reese states: "can I ask was there one or more particular changes and/or directives where you had concerns about consultation and communication?" [80]
28 May 2024 8:36 am	The Respondent's disclosure contains a message dated 28 May 2024 at 8:36 am from Ms C Taylor, addressed to the Appellant and copied to Ms T Reese, with the subject "Validation of Claims older than 3 months - Please sign". [196] That message of 28 May 2024 states: "Please find attached Validation of claims older than 3 months, please sign and return to be as soon as possible so I can escalate for delegate approval." [197] The employer's own system records this: That report records the initiator of each of those five Attendance Variation and Allowance Claims as "Donovan-Taylor, Chloe". [200] That report records the initiator of no Attendance Variation and Allowance Claim in that period as the Appellant. [201] Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in the myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure. [210]

18 June 2024 8:58 am	On 18 June 2024 at 8:58 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and Ms Stibbard, with the subject "Good morning Team.", which states: "I am taking today off, and hopefully will be back tomorrow." ^[85] That email of 18 June 2024 states: "I am sorry I haven't been there for you all over the past week." ^[86] That email of 18 June 2024 states: "Ellen will not be in today, however Tammy is in the office if anything urgent." ^[87] The work capacity certificates of Dr Peter Hawes record the stated date of injury as 18 June 2024. ^[M2]
28 June 2024	28 June 2024 (Dr Slawinski) recording "stress at work" and "upset by people not following rules", reason for visit anxiety. ^[M1]
1 July 2024	1 July 2024 (Dr Hawes) recording "work stress", "been there 5 years", that "they withhold pay at times, no overtime- not processed, manipulate his roster- so he works lates then earlies", and "causing anxiety". ^[M1] That the Appellant was first seen for this injury on 1 July 2024; certification of no functional capacity for any type of work over the period 1 July to 6 October 2024. Review Decision 69983 records that the certificate of 1 July 2024 indicated "there was no pre-existing factor or condition", and that "This was maintained in all later work capacity certificates". ^[M2]
2 September 2024	The Respondent's own review recorded Dr Hawes's statement to WorkCover of 2 September 2024 that work events were the sole cause. ^[M9]
8 September 2024	The referral to a psychiatrist recorded on 8 September 2024. ^[M2]
24 October 2024 11:45 am	That on the morning of 24 October 2024, at the first consultation, the treating psychiatrist told the Appellant, and confirmed in writing at 11:45 am that day, that he was "suffering from psychological injury of Major Depressive Disorder with anxiety state"; that fluoxetine was increased to two capsules "from today" and Seroquel 25 mg commenced at night, "to restore basic needs- sleep, eating and routine". ^[M3]
24 October 2024	That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours." ^[258] That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break." ^[259] And found: That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement." ^[260] And concluded: That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature". ^[261] That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor". ^[262]
13 February 2025	Diagnosis: Major Depressive Disorder with anxious distress (DSM-5 296.23). The treating clinician's account of origin: "workplace stress stemming from issues with management and rostering"; that the issues "began approximately one year ago when a new manager was appointed"; pay "withheld or delayed for up to five months at a time, leading to significant financial stress". ^[M4]
3 July 2026	Employee Capability Checklist completed by Dr Day Hong Ma: current capacity and restrictions, and the continuing effect of the injury, including "symptom exacerbation on exposure to the identified workplace stressors". ^[M8]

105 admitted facts are reproduced above. The Respondent admitted 298 of the 303 facts in the notice; none of the five not admitted appears here. The medical entries are the documents at Tabs M1 to M9 of the schedule served on 9 September 2026, each already held by the Respondent at the item of its amended List of Documents dated 14 August 2026 stated in that schedule.